

## Maa Kaila Devi Sheet Grah Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2013 · Writ-C No. 18958 of 2013 · **Writ disposed; deposit Rs 50,000 and approach EE under 6.14/6.5.**

### HEADNOTE

Disposing of a challenge to a recovery citation for electricity dues, the Court recorded the licensee's statement that the Executive Engineer may permit instalments under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was permitted to deposit Rs 50,000 within 15 days and then apply to the Executive Engineer, who may adopt a liberal approach. Merits of the recovery were not decided.

### FACTUAL SUMMARY

Maa Kaila Devi Sheet Grah Pvt. Ltd. challenged a recovery citation dated 18 March 2013 for electricity dues. Counsel submitted that the petitioner was ready to pay the amount in instalments if time were granted. Counsel for the Power Corporation stated that under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005, the concerned Executive Engineer was empowered to grant that facility.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

#### HOLDING

On the licensee's statement that the Executive Engineer is empowered under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005 to permit payment of electricity dues in instalments, the Court disposed of the writ against a recovery citation by permitting the consumer to deposit Rs 50,000 within 15 days and then apply to the Executive Engineer, who may adopt a liberal approach in settling the dispute. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 18.3.2013 AND THE UNDERLYING ELECTRICITY DUES

Writ disposed without examining the merits of the recovery or the bill; consumer relegated to the Executive Engineer. ¶ 1